The Gacaca Experience: Rwanda's Unique Hybrid Approach in Transitional Justice

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Abstract

"Transitional justice" ("TJ") refers to those national and international initiatives aimed at rebuilding post-conflict societies which have experienced widespread and systematic human rights violations (Hayner, 2011). In the aftermath of the 1994 Rwandan genocide, various TJ initiatives were concurrently pursued, most notably the International Criminal Tribunal for Rwanda (ICTR), Rwanda's national courts and Rwanda's community-led Gacaca trials. The Gacaca trials have been considered the most far-reaching socio-legal experiment in the history of TJ (Ingelaere, 2008; Longman, 2017; Uvin, 2003.) While the trials aimed primarily at clearing the backlog of cases resulting from the arrest of tens of thousands of accused perpetrators, they were equally established to uncover the truth about the genocide as well as contribute to national reconciliation (Longman, 2017). Due to its informal and participatory nature, human rights organizations such as Amnesty International have characterized the decade of Gacaca proceedings as a form of mob justice, condemning their lack of due process and procedural safeguards (Amnesty International, 2002). Other scholars have considered that Gacaca's emphasis on community autonomy, its decentralization of justice and emphasis on victim offender mediation have resulted in a largely successful experiment in restorative justice (Clark, 2010; Tiemessen, 2004). These contradictory appraisals of the Gacaca trials are indicative of the many theoretical challenges in the field of TJ. Most notably, the continued adherence in the literature relating to Gacaca to binary frameworks such as punishment or reconciliation and retributive or restorative justice.

As the field continues to be influenced by such dichotomies, this dissertation aims at providing new insights into the relationship between retributive and restorative justice and examines what can be learned from Gacaca's unique, internally hybrid, approach. Firstly, I argue that Gacaca must be studied as an innovative hybrid institution and should not be assessed only in regard to its adherence to established restorative or retributive practice. Further, I examine the contentious interaction between its restorative and retributive features and the discrepancy between international and domestic perceptions of legitimacy. The final section demonstrates that the most notable illustration of the tensions between retributive and restorative practice relates not to accountability through prosecution but rather to Gacaca's ambition of restorative truth-seeking in the context of criminal prosecutions.

Preface

This dissertation examines Rwanda's community-led Gacaca trials as a unique and innovative approach in TJ. It aims to critically examine current and conflicting understandings of the Gacaca trials through an interdisciplinary method which examines academic research from the fields of law, criminology, political science, international relations and sociology. As throughout my degree I studied primarily criminal law and political violence, I sought to examine a topic which combined such disciplines. For this reason, I chose to conduct my research in the emerging interdisciplinary field of TJ which studies the ways in which countries emerge from and address systematic human rights violations through legal as well as non-legal mechanisms. My choice to study Rwanda in particular was influenced by my French nationality and President Emmanuel Macron's election. Almost immediatly following the genocide, the Rwandan government, with some support from other Africa nations and academics have considered France, through its relationship with the previous Rwandan Hutu government, complicit in the genocide (Cameron, 2015). In 2019, Macron launched a large scale commission to investigate France's alleged complicity in the genocide (Desai, 2021). In following this debate I became increasingly interested in post-genocide Rwanda and the way in which its has emphasized, as president Kagame states: "African solutions to African problems" (Kagame, 2009).

As to the interdisciplinarity of this dissertation, while I did not combine clearly distinct disciplines such as law and biology, the study of TJ is inherently interdisciplinary (Bell, 2009). The fundamental principles and theoretical frameworks of TJ theory have been informed by, among others, the disciplines of law, criminology, philosophy and political science (Mieth, et al., 2014). Indeed, philosophy has developed multifarious conceptions of justice and human agency, criminology and law have informed TJ in regard to retribution, deterrence and judicial legitimacy while political science has emphasized the socio-political implications of TJ initiatives (Bell, 2009). Academics from the fields of sociology, history, political psychology and international relations have also contributed to the current state of research (*ibid*). As this field encompasses a wide range of disciplines, I engaged with publications from various disciplinary journals with the objective of providing a multidisciplinary analysis of the Gacaca trials. For instance, while my analysis as to Gacaca's legitimacy was informed by scholars of law and criminology, the sections which consider the role of truth in reconciliation relate rather to sociology and political psychology. A single disciplinary perspective would then not have allowed for a comprehensive understanding of the Gacaca institution and its political, social and legal dimensions.

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Acronyms

ICTR	International Criminal Tribunal for Rwanda
NURC	National Unity and Reconciliation Commission
PRI	Penal Reform International
TJ	Transitional Justice
TRC	South African Truth and Reconciliation Commission

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Chapter 1: Introduction

The 1994 Rwandan genocide, during which an estimated 800,000 men, women and children were killed has been the most adjudicated mass atrocity in history (Longman, 2017). Concurrent criminal trials by the ICTR in Tanzania, national courts across Europe, Rwanda's national courts and Rwanda's community-led trials, Gacaca, have resulted in the concurrent prosecution of an estimated one million suspects of genocide related crimes (*ibid*). Such legal pluralism has been the subject of vigorous debate among scholars and has been instrumental in shaping the academic understanding as to what Sharp (2013) has deemed the fourth phase in TJ. As Sharp argues, the fourth phase emphasizes the need for localized approaches and is increasingly concerned with the potential conflict between international human rights standards and post-conflict conditions (*ibid*). As a result, Rwanda's localized and informal approach through its community-led Gacaca trials has been the subject of widespread critique by what Meyerstein (2007) deems the "human rights regime" (Meyerstein 2007, p.467). The human rights regime relates to legalistic critiques of trials' adherence to international fair trial standards which some consider lack the cultural relativism needed to understand the discrepancies between international and local perceptions of justice, fairness and legitimacy (Meyerstein, 2007; Tully, 2003).

My research, influenced by recent ethnographic evidence, suggests that despite Gacaca's extensive limitations and challenges, the wider Rwandan population seems to largely agree that Gacaca was a necessary and valuable tool in rebuidling post-genocide Rwanda (Clark, 2010; Gabisirege and Babalola, 2001; Longman, 2017; Pozen, Neugebaeur and Ntaganira, 2014; Rettig, 2008). Although Rwandan citizens condemn certain procedures and outcomes of the Gacaca process, their critiques diverge from dominant human rights criticisms. In order to understand and examine this disjunction, I have applied the emerging comparative framework of retributive versus restorative justice. While retributive TJ is often pursued through criminal trials, restorative justice is concerned with rebuilding social relationships through non-legal mechanisms such as truth commissions (Huyse, 2003). Gacaca is often analyzed only in terms of its relative success or failure as a retributive justice mechanism (Amnesty International, 2002; Drumbl, 2000; Human Rights Watch, 2011) or its restorative contrary (Tiemessen, 2004; Waldorf, 2007). I argue however, that Gacaca should be studied as that which it is: a hybrid approach in TJ which ambitiously sought to incorporate the procedures and expected outcomes of both paradigms within a single institution. Consequently, this dissertation aims to provide new insight into the study of this hybrid model in TJ through the explorative case study of the Gacaca trials adopting the title: The Gacaca experience: Rwanda's unique hybrid approach in TJ. The following chapter will present the methodology used to conduct this research while the third chapter will provide the necessary

background to contextualise the main discussion including a historical account of the genocide and a brief discussion of the emerging field of TJ. The main discussion includes three sub sections relating firstly to Gacaca's hybridity, its legitimacy as an unique socio-legal experiment and finally its capacity to be conducive towards the fundamental principle of restorative justice: truth.

Chapter 2: Methodology

2.1 Selected methodology

This dissertation's research method is a single, qualitative and exploratory case study of Rwanda's Gacaca trials. An exploratory case study allows for an in-depth critical description of a social phenomenon as opposed to the explanation of specific outcomes as pursued through explanatory case studies (Yin, 2014). Indeed, this type of case study allows for an analysis which does not aim to reach definitive conclusions but rather examines assumed causal links and provides new interpretations and understandings of the topic (*ibid*). As this dissertation aims to examine current evaluations of the Gacaca experiment, an explorative case study was the best method to analyse and contribute to this existing debate. This dissertation does not seek to reach singular conclusions as to whether justice or reconciliation was achieved but rather offer a critique of existing evaluations and theoretical frameworks; thus, an exploration rather than explanation of this case was chosen. In order to narrow the focus of this case study, I divided my primary research question into three sub-questions:

What can the Gacaca experience tell us about the effects of seeking retributive and restorative justice within a single institution?

1. In what ways can Gacaca be conceptualized as an internally hybrid institution in transitional justice?

2. How was Gacaca able to earn its legitimacy as a hybrid model in transitional justice?

3. To what extent was Gacaca's hybrid model conducive towards the establishment of truth?

2.2 Literature Review

Due to limitations on the possibilities of conducting novel, ethnographic research in Rwanda, and in view of the fact that generalised surveys would not have been beneficial in answering these questions, an in-depth evidenced-based critical literature review, which aims to synthesise and examine current knowledge as to a specific subject (Winchester and Salji, 2016) was considered the best method. This literature review required extensive engagement with many book length analyses, journal publications, government publications, trial transcripts from the ICTR and the Gacaca trials, and video recordings of Gacaca trials published on youtube. While critical academic scholarship was essential in developing this case study, trial transcripts and video recordings were needed to develop my own critical understanding of the trials.

Literature pertaining to pre-colonial inter-ethnic relations in Rwanda as well as the events of the 1994 genocide were selected on the basis of the authors' relative influence and recognition in the field. Scholars include Catherine Newbury, David Newbury and Alison Desforges. These authors have applied a strict historical method involving archival research and analysis of written and oral testimony to construct the most reliable account of the historical development of inter-ethnic relations in Rwanda and the events of the 1994 genocide. In regard to the section which situates the Gacaca trials within the context of TJ, I primarily used handbooks published by the International Institute for Democracy and Electoral Assistance (IDEA). Their handbook series present comparative analyses of specific topics within the field of TJ, which were immensely valuable in gaining multidisciplinary insights as to various theoretical and structural frameworks related to post-conflict rebuilding, reconciliation and restorative justice. Many other academic handbooks including the Handbook of Restorative Justice (Sullivan and Tifft, 2007) were examined to gain comparative insights into this field. Finally, the selection criteria for publications relating to the ICTR included their publication date (as more recent examinations of the ad hoc tribunal's legacy were prioritized) as well as their engagement with trial transcripts and ethnographic research in Rwanda.

As to the main discussion of this dissertation, the academic debate surrounding the Gacaca trials is dominated by a handful of scholars who have conducted extensive fieldwork in Rwanda. These authors include but are not limited to Clark, Waldorf, Longman, Ingelaere and Uvin. Debates as to the proceedings as well as the societal and political implications of the trials are led primarily by these academics who have often engaged in vigorous debates critiquing the others' publications. The critical literature review thus involved studying every publication by these authors, comparing

their methods, theoretical frameworks and deductions in order to provide new perspectives and insights as to this ongoing debate. My examination of their research was informed by the latest empirical studies conducted in Rwanda. While I engaged with fieldwork conducted by these various scholars, I focused primarily on a 2014 empirical study which is the only empirical study conducted since the end of the trials in 2012 (Pozen, Neugebauer and Ntaganira 2014). While their sample size was limited, I considered their probability proportional to size sampling (PPR), statistical analyses and measures used the most appropriate and compelling empirical research available to me.

As this scholarly research lacks crucial, empirical data and relies heavily on theoretical and structural arguments, I engaged with the greatest possible amount of empirical research available to me considering that foreign assessments relying on theory alone may fail to acknowledge complex local narratives.

2.3 Methodological limitations

The primary methodological limitation of this dissertation relates to the limited empirical research available to me. Due to the scarcity of recent fieldwork, I rely heavily on a single study published in 2014 (mentioned above) whose results cannot be generalized to the wider Rwandan population. My research would then have greatly benefited from more recent survey data relying on representative samples as local perceptions have likely evolved since 2014.

Chapter 3: Background

3.1 The 1994 Genocide

Between April and mid July 1994, several hundred thousand Rwandan citizens participated in the mass killing of an estimated 800,000 Tutsi men, women and children (Desforges, 1999). The mass atrocity was perpetrated by extremists of the majority Hutu ethnic group which sought to eradicate Tutsi citizens, deemed "cockroaches" on the RTLM radio which broadcasted genocidal ideology during the hundred days of killings (*ibid*). The history of inter-ethnic relations in Rwanda suggests that ethnic hostility is in many ways a legacy of colonialism (Longman, 2017; Newbury, 1998). While ethnic stratification and hierarchy did exist, pre-colonial social mobility and inter-ethnic marriage suggests these social groups were not immutable ethnic identities in the primordial sense (*ibid*). Most notably, with the introduction of ethnic identidy cards in 1933 which rendered such groups immutable, colonial administrations' ethnic policies produced institutional ethnic discrimination resulting in severe inter-ethnic hostility and antagonism (*ibid*).

Between the 1930s and 1950s, multiple inter-ethnic conflicts emerged which culminated in the 1959 revolution during which Hutus militias violently re-established political authority, killing thousands of Tutsi citizens and reversing the colonial status quo (*ibid*). As a result of the 1959 revolution, an estimated 300,000 Tutsis fled to neighbouring countries which formed the basis of the militia group, the Rwandan Patriotic Front (RPF), which invaded North-Eastern Rwanda on the 1st of October 1990 (*ibid*). By 1993, a peace accord was signed between the RPF and the Government of the Republic of Rwanda; however, ethnonationalist 'Hutu power' discourse continued to propagate and intensify among Hutu extremists (*ibid*). The assassination of Hutu President Juvénal Habyarimana on the 6th of April 1994 is considered the structural trigger for the hundred days of mass killings (*ibid*). By mid-july 1994 the Tutsi-led RPF violently brought an end to the genocide and embarked on the mass arrest of tens of thousands of suspected Hutu perpetrators (*ibid*). Despite large-scale international aid towards the rebuilding of Rwanda's national judicial system, decimated during the Genocide, in 1998 it was estimated that holding trials in Rwanda for the estimated 125,000 prisoners awaiting trial would take up to a century (Longman, 2017). Thus, the Rwandan government with the stated goals of establishing the truth about the genocide, accelerating the justice process, ending impunity and working towards desperately needed reconciliation, resurrected and adapted the pre-colonial dispute resolution mechanism: Gacaca (*ibid*).

3.2 Gacaca and the field of transitional justice

The emerging field of TJ is concerned with the formal and informal mechanisms used to redress post-conflict societies in addressing mass violations of human rights (Teitel, 2003). While the field has been considered riddled with inconsistencies (Clark and Palmer, 2015), Teitel (2003) has established a genealogy of TJ which I examine in order to place Gacaca in its wider theoretical context. The first phase of TJ, characterized by the allied-run Nuremberg trials and the development of international criminal law, emphasized a strict adherence to international human rights and privileged top-down approaches void of grassroots participation (Teitel, 2003; Sharp, 2013). Between the first and second phase, the evolving field of TJ became increasingly concerned with post-conflict peace-building through community-level participation (Teitel, 2003). The establishment of the South African Truth and Reconciliation Commission (TRC) in 1996, which rejected a retributive approach and emphasized the relationship between amnesty and reconciliation encouraged the development of restorative justice theory (Hayner, 2011). Restorative processes place greater emphasis than classical criminal trials on the restoration of social relationships between victims and perpetrators and prioritizes community autonomy (Sullivan and Tifft, 2007). In turn, the global spread of truth commissions have formed the basis of much of the academic literature as to restorative justice in post-conflict societies. The third and present phase elaborated by Teitel (2003) relates to the normalization and homogenization of TJ practices as seen by the establishment of the ICTR.

The ICTR, established in 1994 to try high-level perpetrators, has, to this day, convicted a total of 73 perpetrators, a low number which has been repeatedly condemned by scholars as well as the Rwandan government (Kendall and Nouwen, 2016; Longman, 2017; Nwoye, 2014). While the ICTR's legacy website emphasizes the tribunal's multifarious international law 'firsts' such as the first conviction of a former head of state since the Nuremberg trials, the first instance of interpreting genocide law and the first instance of defining rape as a violation of international criminal law, the ICTR's contribution towards developing international criminal law is arguably greater than its contribution towards Rwandan reconciliation. (Kendall and Nouwen, 2016; Longman, 2017; Tiemessen, 2004). Most notably, despite the Rwandan government's insistence that the trials should be held locally as justice must be seen to be done (Schultz, 2015) the international community dismissed this request and located the tribunal in Arusha, Tanzania in an attempt to reduce the taint of victor's justice (Longman, 2017). Due in part to this decision, Rwanda's citizens remain largely unaware of the work of the tribunal which has inevitably hindered its capacity to contribute to reconciliation (Clark, 2010; Nowye, 2014; Schultz, 2015)

While the ICTR was arguably successful in its retributive aim of prosecuting and sentencing high-level perpetrators, thus reaffirming the primacy of the law over all individuals, the tribunal also assumed a causal relationship between prosecution and reconciliation in Rwanda. In the transcript of the 1999 judgment of Rutanga v. The Prosecutor, the hearing aimed to "prosecute and punish perpetrators of the atrocities in Rwanda in such a way as to put an end to the culture of impunity and thereby promote national reconciliation" (ICTR-96-3-A). However, this assumption by the UN that international criminal trials are inherently conducive towards national reconciliation has been heavily criticized by TJ scholars (Nowye, 2014)(Akhavan, 2013)(Schultz, 2015). Indeed, proceedings by ad hoc tribunals such as the ICTR may sideline the needs of survivors, limit victim offender mediation and restrict the exchange of personal narratives to what is deemed strictly legally relevant (Hayner, 2011). Commenting on the ICTR's decision to have their outreach center in Kigali called "Contribution to reconciliation", scholars Kendall and Nouwem consider that the ICTR may benefit from adopting a new "ethos of modesty" (Kendall and Nouwem 2016, p.212).

Sharp (2013) considers such criticisms as characteristic of the fourth phase in TJ which considers how local approaches in which the victimized community possess a sense of ownership over the process may be more conducive towards reconciliation than ad hoc tribunals. However, there is little agreement as to how reconciliation should be defined. Some consider that in its most simple form, reconciliation entails "finding a way to live alongside former enemies" (Bloomfield 2003, p.12) which in Kinyarwanda could refer to *kubana*, cohabitation. However, Rwandans often refer to a deeper understanding of reconciliation: *ubwinyunge* which can be translated to 'a matter of the heart' (Ingelaere 2009, p.516). While reconciliation can be measured as the absence of violence between antagonistic groups, reconciliation as a matter of the heart entails social cohesion, forgiveness and the restoration of trust (Hayner, 2011; Inglaere, 2009). While this dissertation, as it is exploratory in nature, does not aim to reach conclusions as to whether reconciliation was reached through Gacaca, it aims to analyze current and often conflicting understandings of justice and reconciliation in the context of Gacaca's innovative community-led trials.

Chapter 4: Discussion

4.1 In what ways was Gacaca an internally hybrid approach in transitional justice?

4.1.1 Traditional and modern Gacaca

The modern Gacaca institution was in many ways shaped by the fundamental principles of Rwanda's pre-colonial indigenous dispute resolution mechanism (Bornkamm, 2012). 'Gacaca' in Kinyarwanda can roughly be translated to grass as proceedings were held outside under shade trees (*ibid*). Gacaca, existing in Rwanda since the 13th century, were informal justice processes administered locally by the wider community (*ibid*). Proceedings were led by household leaders or community elders, '*inyangamugayo'* (persons of integrity) who would hear the claims of each conflicting party and propose reparations to resolve disputes and achieve reconciliation (Clark, 2010). Traditional Gacaca proceedings were arguably what is now described as restorative justice as they were initiated and administered by the wider community and involved extensive mediation between victims and perpetrators to resolve conflicts (O'Reilly and Zang, 2016). In 2001, the Rwandan government resurrected this mechanism as an experiment in TJ to hold criminal trials for suspects of genocide related crimes, with significant modifications from its traditional predecessor. Under the 2001 Organic Law which institutionalized Gacaca, the resurrection of the traditional dispute resolution mechanism had four primary aims (Organic Law No. 40/2000 of 2001):

Have the truth be revealed about the Genocide.
Speed up the trials for those accused of genocide related crimes.
Put an end to the culture of impunity.
Reconcile Rwandan society.

In regard to its state-led formalization and institutionalization, modern Gacaca did incorporate exogenous features insofar as formal law, decided by the state, regulated Gacaca proceedings. Gacaca's 2001 Organic Law categorized defendants according to the Rwandan 1996 Genocide Law which established four categories of genocide related crimes and mandatory sentencing rules within each category (Organic Law No. 40/2000 of 2001). Category one crimes include planners and organisers of the genocide, category two crimes relate to the intentional perpetration of genocidal crimes, category three includes all serious assaults against the person and category four relates to property offences (*ibid*). Per Gacaca law, a plea-bargaining system allowed defendants to significantly reduce their sentence or have their sentence commuted to community service if they provided detailed confessions, provided information as to any accomplices and expressed remorse

for their crimes (*ibid*). As in its traditional predecessor, trials were administered by locally elected '*inyangamugayo'* in the cell and sector levels of Rwanda's geographic administration (*ibid*). Each court included a general assembly of ordinary citizens, lay judges, a president and a coordination committee (*ibid*). While the procedures which governed Gacaca resulted in a vastly different institution than its traditional predecessor, its fundamental principle of participatory justice in the aim of reconciling Rwandan communities mirrored its restorative origins (Clark, 2010; Tiemessen, 2004)

4.1.2 Gacaca as a hybrid model in transitional justice

Lars Waldorf, a longtime critic of the Gacaca courts, contends that "calling *gacaca* traditional or hybrid obscures the fact that it is modern, state-imposed informalism" considering that the only resemblance between traditional Gacaca and modern Gacaca is their denomination (Waldorf 2013, p.122). I argue that while institutionalized, modern Gacaca adhered to the fundamental principle of its restorative predecessor. Restorative justice is defined not as an outcome but as a "process within which all those affected by harm come together to collaboratively decide how to respond to its aftermath and its implications for the future" (Sullivan and Tifft 2007, p.17). Gacaca's modus operandi of popular dialogue through community-led justice thus arguably adhered to such fundamental principles of restorative justice as Gacaca's procedures were dependent on popular ownership and mass community participation (Uvin, 2003). Gacaca employed both accusations and confessions, punishments and forgiveness, incarceration and also reintegration through community service which resulted in an innovative hybridity between retributive and restorative justice frameworks (*ibid*). However, scholars have often evaluated Gacaca as a function of the extent to which it adhered to either retributive or restorative practice (Drumbl, 2000; Tiemessen, 2004; Waldorf, 2007). I argue that focusing the analysis on either aim without examining the relationship and interaction between its dual objectives would obscure its hybrid dynamics and potentially inadequately assess its legacy. As Rwandan commentator Alice Karekezi states, "Gacaca is not studied in the way it is" (Karekezi 2008, p.1). As seen in Table 1, the relevant stakeholders and expected outcomes of Gacaca incorporated principles of both forms of TJ, resulting in an original, and understudied, internal hybridity.

Table 1: Gacaca's hybrid model in transitional justice

	Retributive justice	**Restorative justice**	**Hybrid justice**
Stakeholders	Defendant and legal counsel The state (through its criminal court system, public prosecutor and executive power to enforce judicial decisions) Trained and often state appointed judges Victim Witnesses	Victim Defendant Relevant community Witnesses Community appointed mediators	Defendant and victim (procedurally equal position) Relevant community Witnesses Community appointed lay-judges and mediators The state (through its power to enforce Gacaca court legal decisions and more generally to enforce Gacaca law)
Primary expected outcomes	Accountability through retribution, fighting impunity.	Victim offender mediation Establishing the truth / historical account Apology and forgiveness Victim compensation	Accountability through retribution, fighting impunity. Victim offender mediation Establishing the truth / historical account

		Reintegration Reconciliation	Apology and forgiveness Reintegration Reconciliation

4.2. The legitimacy of the Gacaca institution: an analysis of the interaction between its retributive and restorative features

4.2.1 Introduction

This section considers the ways in which the interaction between Gacaca's dual aims affected the institution's legitimacy as an innovative approach in TJ. While human rights critics have often condemned Gacaca as an inappropriate and illegitimate mechanism in adjudicating mass atrocity (Amnesty International, 2002)(Human Rights Watch, 2011), ethnographic research within Rwanda suggests popular support and perceptions of legitimacy for the hybrid institution (Clark, 2010; Longman, 2017; Pozen, Neugebaeur and Ntaganira, 2014)(Rettig, 2008). While Rwanda's repressive socio-political environment is considered by some to discredit any evidence suggesting popular support of the trials, I argue in accordance with Pozen, Neugebaeur and Ntaganira (2014:p.34) that "positive attitudes (…) cannot be fully discounted". This section then seeks to examine why, despite recognized miscarriages of justice, Gacaca was also considered a largely successful hybrid experiment by scholars such as Phil Clark who conducted the most in-depth analysis of the trials since their inception (Clarke, 2010). In the literature studied, there seems to be a discrepancy between international and domestic perceptions of Gacaca's legitimacy as well as perceptions that Gacaca's hybrid nature eroded its capacity to deliver justice (Kirby, 2006)(Meyerstein, 2007)(Waldorf, 2013). This section seeks to argue the need for a thicker understanding of TJ by examining the limitations of what McEvoy deems the "international legalist paradigm" in TJ literature (McEvoy 2007, p.492).

The study of Gacaca's legitimacy may encompass its institutional legitimacy which relates to the extent to which the institution itself is considered appropriate and justified by both international and local actors, and procedural legitimacy which considers the value accorded to the

decision-making and procedures of the institution (Tyler, 2006). As the perceived legitimacy of an institution affects the extent to which participants respect and adhere to its subsequent outcomes (*ibid*), I will firstly argue that the mass participatory nature of Gacaca's resurrection, a restorative principle, may have strengthened the legitimacy of the Gacaca as a criminal retributive mechanism. I will then consider how its restorative dimension of excluding trained judges and lawyers affected its procedural legitimacy as a retributive tool and will finally consider the consequences of hybridity on judicial independence and impartiality.

4.2.2 Endogenous transitional justice

In the aftermath of violent conflict, exogenous TJ processes are likely to be perceived as a form of victor's justice lacking accepted legitimacy (Kaminski, Nalepa and O'Neill, 2006). Indeed, when retribution is dispensed by a newly established government with little consideration as to the perceptions of the wider civil society, those to be involved in TJ processes are unlikely to respect and adhere to the procedures or expected outcomes of such processes (*ibid*). In the context of post-genocide Rwanda, in which political authority by the RPF can been described as Tutsi rule, the necessity for TJ to be endogenous was arguably of primary importance. Grassroots consultation and involvement of civil society are considered as emerging benchmarks for legitimacy of TJ processes (Lundy and McGovern 2008); thus, Gacaca's endogenous dimension, a component of its hybrid nature, may have acted against perceptions of victor's justice and strengthened Gacaca's institutional legitimacy (Clark, 2010)

Before its institutionalization in 2001, weekly reflection meetings organized by former president Bizimungu during 1998 and 1999 aimed to include the wider society into the debate regarding Gacaca's legitimacy to try genocide related crimes (Clarke, 2010)(Karekezi, Nshimiyimana and Mutamba, 2004). Actors from Rwanda's legal establishments, local governments, non-governmental organizations and religious communities alike were involved in country-wide debates to discuss the respective value of criminal trials, truth commissions, retribution and reintegration (Ingelaere, 2008). Further, widespread surveys between 1998 and 2001 were conducted by the National Unity and Reconciliation Commission (NURC) to assess the concerns and expectations of the wider society (*ibid*). It is only as a result of nation-wide debates and discussion that the Organic Law of 2001 which established Gacaca's mandate, was adopted (*ibid*). As a result, I would argue that Gacaca may be conceptualized as an endogenous institution in so

far as its resurrection, modified to include a retributive mandate, came as a result of widespread grassroots consultation.

A 2001 multi-layered study which interviewed 1,676 citizens (including prisoners) from five provinces to assess grassroots perceptions as to Gacaca's resurrection suggested widespread support (Gabisirege and Babalola, 2001). Indeed, the overwhelming majority of respondents were confident as to the efficacy of the Gacaca jurisdictions to hold trials as well as promote sustainable peace (*ibid*). As this survey was conducted before the launch of Gacaca promotional campaigns in 2002, the extent of civil society's support was likely influenced by Gacaca's perceived resemblance to its traditional and restorative dispute resolution mechanisms known and recognized by Rwandan citizens. In turn, this restorative dimension of Gacaca's hybridity was arguably necessary to provide institutional legitimacy for Gacaca as a retributive tool as in the absence of grassroots consultation, Gacaca was likely to be considered a form of state imposed victor's justice (Clarke, 2010)(Kirby, 2006).

4.2.3 Justice without lawyers

The emerging field of TJ has been considered to remain influenced by the dominance of legalism (McEvoy, 2007). McEvoy suggests a thicker conception of transition justice which considers the strained relationship between human rights ideals and post-conflict conditions (*ibid*). Strictly legalistic evaluations of Gacaca such as those offered by Amnesty International may obscure the ways in which certain rule of law compromises are inherently necessary and may in fact strengthen rather than restrict local perceptions of legitimacy (*ibid*). In post-genocide Rwanda, in order to protect community ownership and autonomy, its restorative justice dimension, judicial proceedings were to exclude trained judges and lawyers, a cornerstone of fair retributive justice. Rwandan domestic law is subject to treaty obligations under the Universal Declaration of Human Rights (UDHC) which considers the meaningful access to legal representation a fundamental human right. This is arguably one of the clearest examples of the conflicts and tensions in Gacaca pursuing restorative and retributive justice. According to human rights critics, Gacaca's restorative dimension which requires lawyers to be excluded from judicial proceedings (as will be further analysed below) illustrates the incongruence of informal local justice and adherence to established fair trial standards (Human Rights Watch, 2011). However, the study of restorative dynamics in TJ theory increasingly recognizes the importance of local rather than international understandings of legitimacy (Teitel, 2003). Indeed, its participatory structure in which victims, perpetrators and

witnesses are free to discuss the terms among themselves results in the "play of argument and counter-argument, of witness and counter-witness by the community [which] basically amounts to the same thing as a fair defense" (Uvin 2003, p.119). The communitarian structure of Gacaca encourages dialogue for all parties concerned, hence upholding a certain equality of arms in which the defendant and victim possess a procedurally equal position in the judicial process (Tully, 2003). For instance, Gacaca law mandates that proceedings for those who have not confessed begin with the accused presenting his or her own defense and calling upon his own witnesses (Clarke, 2010; Meyerstein, 2007). Further, under Gacaca law, defendants may appeal the categorization of their offence (Article 86) as well as the sentencing outcomes of their trial (Article 83) (Organic Law No. 40/2000 of 2001). These safeguards suggest that despite widespread criticism, its restorative dimension of informal participation (without legal representation) may not have compromised its objective of just retribution (Tully, 2003; Uvin, 2003).

Further, the exclusion of legal counsel may have in fact strengthened the community's sense of ownership over the process and encouraged restorative intergroup contact. As Christie (1977) highlighted, Western court procedures tend to prioritize procedural law over the protection of social systems and considers that "lawyers are particularly good at stealing conflicts" (Christie 1977, p.4). Indeed, an adversarial approach by lawyers may have restricted the reconciliatory open discussion and exchange of narrative truths between victims and perpetrators. Thus, human rights advocates may underemphasize the way in which Gacaca's hybrid structure promoted victim-offender mediation without substantially affecting the courts' capacity to offer just retribution (Clarke, 2010; Meyerstein, 2007).

As this hybrid structure encouraged positive intergroup contact, this rule of law compromise may have also been conducive towards reconciliation. In political psychology, the contact hypothesis contends that certain forms of intergroup contact between antagonistic groups may decrease hostility and intergroup prejudice (Alport, 1954) (Pettigrew and Tropp, 2013). Through positive intergroup contact, antagonistic groups may come to recognize the other's humanity and dignity, improving trust and thus building social cohesion which may not have been possible in the presence of lawyers controlling victim, offender and witness interaction (Christie, 1977; Sentama, 2017).

4.2.4. Fair reflection and procedural legitimacy

The method of nomination and composition of Gacaca's judiciary, which further characterizes Gacaca's restorative dimension, may be examined to illustrate the complex relationship between its hybrid aims. Restorative justice processes require that arbitrators be elected by the wider community in order for them to best encourage victim offender mediation (Huyse, 2003). The retributive paradigm however, emphasizes rather that judges be highly trained in international criminal justice and human rights. Thus, Gacaca's administering trials by untrained judges has been condemned as an example of the incongruity between restorative practice and institutional legitimacy (Human Rights Watch, 2011). In 2001, the community designation of Gacaca's judiciary was primarily based upon ordinary households' lists of 'outstanding members of the community' which needed to be *Inyangamuyo*, persons of integrity (*ibid*). In turn, as 90% of the Rwandan population participated in their nomination, the community rather than the state appointed the 250,000 judges from 11,000 jurisdictions (Longman, 2017).

A 2011 study of 504 citizens from the Ngoma commune suggests that respondents were highly confident that the selection of the judiciary was conducted fairly: 69% agreed and 23.88% strongly agreed that the "The election of gacaca judges was conducted fairly in my community" (Pozen, Neugebauer and Ntaganira 2014, p.42). While this survey data cannot be generalized to Rwanda's wider community, academics who studied the 2001 selection of the judiciary have characterized the process as a dynamic mass celebration across the country (Clarke, 2010). In the contentious socio-political context of post-genocide Rwanda, a widespread fear, most significantly among the Hutu population, was of imposed victor's justice (Tiemessen, 2004). However, by adhering to a restorative principle of ownership over the judicial process in which conflict mediators are decided by the affected community, judges may have been more likely to be perceived as appropriate actors to administer trials thus strengthening Gacaca's institutional legitimacy.

In regard to the profile of Gacaca's judiciary, Gacaca judges were elected by, as well as composed of, ordinary citizens with no previous legal training (Ingelaere, 2008). The large majority of Gacaca judges received six to ten days of formal training in 2002, aimed to instruct: the principles of Gacaca law relating to the categorization and sentencing of defendants, conflict management skills, trauma handling, judicial ethics and various administrative matters (*ibid*). The limited training of Gacaca judges has been considered a primary hindrance to Gacaca's capacity to offer just retribution (Human Rights Watch, 2011). However, these and highly critical reports from Amnesty International for instance which adhere to strict international legalism, may attempt to universalize and homogenize Western court paradigms with little cultural relativism needed to

assess local perceptions of legitimacy (Alvarez, 1999; Meyerstein, 2007). Gacaca, as a hybrid institution, could not elect ordinary citizens to its judiciary, necessary to protect the perceived legitimacy of the courts, while also selecting highly trained academic elites.

While Gacaca proceedings would have undoubtedly benefited from judges receiving additional training to administer the trials, the fair reflection principle argues that judicial decisions are more likely to be accepted as justified if the bench is reflective of the wider population (Lambourne, 2014) (Oakes and Davies 2016, p.461). Studies of Gacaca's judiciary estimate that the average age of Gacaca judges was 38, that they were primarily of low to medium socioeconomic status, they were neither the most impoverished nor the most wealthy, and were primarily Hutu citizens (Chakravarty, 2013). Any persons having held positions of authority in governmental, legal or religious institutions were excluded from the judiciary. Further, an estimated 35% of the judiciary was composed of women (Clark, 2007). While the Gacaca institution was indeed organized under 'Tutsi-rule', it did not impose Tutsi representation on the courts (Clarke, 2010). If suspects of genocide related crimes had been tried by Tutsi dominated tribunals, then indeed Gacaca's judiciary would have been severely politically influenced and entirely irreflective of civil society. It is equally important to stress that politically motivated replacement of judges was not widespread. Extensive ethnographic fieldwork conducted in 2013 by recognized scholar Chakravrty suggests that despite the 2004 national re-election of judges, the majority of the lay judges originally proposed by ordinary Rwandans, remained in place (Chakravarty 2013).

By adhering to a restorative principle under which local communities, as opposed to the state, elect the arbitrators which administer trials, local perceptions of procedural legitimacy were likely strengthened. I argue that in the Rwandan context, were Gacaca to have adhered to a retributive paradigm under which academic elites, decided by the state, administer trials, perceptions of victor's justice and illegitimate judgments may have been greater.

4.2.5 Independence and impartiality of Gacaca's judiciary

As Gacaca may then be conceptualized as an endogenous and restorative initiative, one of the most significant concerns as to its hybrid aims has been the informal trials' capacity to provide independent and impartial judgments for the accused. While I have examined how the absence of defense lawyers and trained judges are illustrative of necessary rule of law compromises within this hybrid system, Gacaca's procedural legitimacy is also dependent on the extent to which convictions and sentencing decisions are considered appropriate and deserving of support. As

Article 14 of the International Covenant on Civil and Political Rights (to which Rwanda is a signatory) states: "everyone shall be entitled to a fair and public hearing by a competent, independent and impartial tribunal established by law." (UN General Assembly 1999, p. 171). While cases of external interference have been cited (Penal Reform International, 2010), there seems to be an underemphasis of the procedural safeguards which the Rwandan government established in order to protect the independence of the Gacaca courts. In order for the Gacaca experience to inform future TJ initiatives, one must consider the substantive outcomes of hybrid justice and consider the extent to which the safeguards established to act against the incongruity between informal justice and procedural legitimacy were sufficient. Extensive fieldwork does suggest that among the one million cases heard, sporadic cases of corruption, intimidation of judges and biased sentencing occurred and were somewhat inevitable (Chakravarty 2013; Longman, 2017; PRI, 2010).

However, the Rwandan government was acutely aware of these risks and provided procedural safeguards to mitigate biased judgments by, for instance, mandating that judges were to recuse themselves if known to the defendant, which was observed to have occurred by scholars supervising cases (Chakravarty, 2013). There were also provisions under the 2004 organic law which allowed defendants as well as victims to request the dismissal of a judge if considered corrupt or incompetent (PRI, 2010). Furthermore, as highlighted by Kirby (2006), the mass participatory nature of Gacaca may not have been incongruent with the search for just retribution as judges were to reach their verdicts and sentencing decisions as a result of consensus-decision making. Indeed, decisions were evidenced to have been reached after private deliberations by at least nine judges (Clarke, 2010). Thus, while cases of bribery and intimidation occurred, judges having to reach unanimous decisions is considered to have decreased the capacity for individual corruption to influence judgments (Kirby, 2006). Tensions in its hybrid model may have also been mitigated by the absence of sentencing discretion offered to judges (Hola and Brehm, 2016). Indeed, Gacaca's institutionalization provided strict sentencing guidelines which limited judicial discretion and may have mitigated the impact of attempted external influence on sentencing. A recent survey conducted after the closing of Gacaca illustrates many respondents' willingness to critique and answer unfavorably as to certain 'granular' questions about Gacaca proceedings (Pozen, Neugebaeur and Ntaganira, 2014). Within respondents' concerns however, impartiality and judicial corruption were not primary apprehensions (*ibid*). While not generalizable to the wider population, the 2014 Ngoma commune study mentioned previously suggests that 66,6% of those interviewed disagreed with the statement "I am concerned that Gacaca judges were corrupt" and

77,43% of respondents agreed that "judges were impartial" (Pozen, Neugebaeur and Ntaganira 2014, p.42).

Further, despite initial apprehension, PRI's research suggests that centralized manipulation by the RPF was not observed during the decade of Gacaca proceedings (PRI, 2010). Due to the sheer number of Gacaca jurisdictions, manipulation by Tutsi controlled administrative authorities has been evidenced as sporadic and limited (Chakravarty, 2013). Recognized scholar Longman considers that one of the reasons for which Gacaca may not be considered a restorative experiment relates to "harsh sentencing guidelines" (2017, p.124); however, recent empirical evidence as to sentencing outcomes suggests that Gacaca sentencing was in fact somewhat lenient (Brehm, Uggen and Gasanabo, 2014). A unique 2014 empirical study examined and coded over two million Gacaca case records of sentencing outcomes for category 1 and 2 crimes provided by the National Service of Gacaca jurisdictions (NSGJ). Their evidence as to prison sentences for category 1 and 2 crimes suggests proportionality in severity-graded sentences (Brehm, Uggen and Gasanabo, 2014). Furthermore, Gacaca's median sentence for category 1 crimes was six years lower than those convictions at the international tribunal which suggests that Gacaca sentencing was not substantially harsher than that of the ICTR (*ibid*).

Thus, while there is insufficient empirical evidence to conclude whether the wider Rwandan community considers there was more justice than injustice achieved by the trials, the government did put in place certain safeguards which limited the potential abuse of Gacaca's hybrid structure. Gacaca participatory justice administered by primarily untrained judges rendered the trials vulnerable to miscarriages of justice due in part to judicial partiality. However, I argue that Gacaca's adherence to a fair reflection principle, consensus decision making, limited discretion offered to judges and the right to appeal may have mitigated certain consequences of the hybrid model's rule of law compromises.

4.3 The place of truth in Gacaca's hybrid model

"The truth or its absence are often cited as the most positive and negative experience with Gacaca." (Ingelaere 2014, p.3)

4.3.1 Introduction

While the previous sections have examined the relationship between Gacaca's retributive and restorative features in regard to accountability through prosecution and victim offender mediation, the third mandated aim of Gacaca's participatory justice was the establishment of an official account of the events of the genocide. While the Gacaca courts had many laudable goals, the search for truth was repeatedly stated by the government as well as Rwandan citizens as a fundamental necessity (Ingelaere, 2008). As the Rwandan government rejected the implementation of a truth commission as an alternative to criminal trials, Gacaca ambitiously aimed to incorporate the aims of a truth commission within its mandate (Bronéous, 2008; Uvin, 2003). Despite this, few studies exist of Gacaca as compared to the procedures and outcomes of traditional truth commissions. Truth commissions, the most prominent mechanism in restorative TJ, are temporary bodies, "set up to investigate and report on a pattern of past human rights abuse" (Hayner 2011, p.4). Truth-seeking processes in TJ are considered reconciliatory in nature as they produce a common understanding of a shared history, help acknowledge the extent of human rights violations and subsequently empower victims and survivors (Freeman and Hayner, 2003).

Although truth is lauded in the field of TJ as necessary in restoring post-conflict societies, truth remains a highly elusive term which must be clearly defined if one is to examine the extent to which it was pursued. The TRC has defined truth through a fourfold typology which has been replicated in truth-seeking procedures in Sierra Leone and Peru and for this reason will be considered in the Rwandan context. In the context of post-conflict societies, truth is an ambiguous concept. While in philosophy and its correspondence theory, truth is defined as the way things actually are, or simply the fact, testimonies by survivors, while not wholly factual, are essential in building a common understanding of violent events which took place (Hayner, 2011). Truth commissions thus recognize the fallibility of victim testimony and consider a wider definition of truth which includes necessary personal interpretations of mass atrocity (Hayner, 2011)(Truth and Reconciliation Commission, 1998). While the establishment of a historical record of facts (deemed restorative truth by the TRC) is essential to act against historical revision, dialogue truth allows for the exchange of personal truths by survivors, perpetrators and witnesses which may contribute to the process of reconciliation by way of recognizing others' experience (*ibid*). Thus, as seen in

Table 2, the fourfold typology developed by the TRC has been considered successful in offering an inclusive framework which measures both factual and subjective truths (*ibid*).

While the aim of Gacaca's truth-seeking process was reconciliation by establishing the truth, its prosecutorial logic rendered truth-seeking procedures fundamentally different to those of a traditional truth commission. This section will thus consider the ways in which Gacaca's retributive dimension may have affected the restorative aim of establishing the truth as to the events of the 1994 genocide.

Table 2: The four truths established by the TRC

Forensic truth	Narrative truth	Dialogue truth	Restorative truth
Collection of forensic evidence. What happened, where, when and how.	Provision of an environment where victims can tell their stories and personal truths.	Interaction, dialogue and debate between the wider community. Subjective truths are weighed one against another.	Establishment of a public national record where factual, personal and dialogue truth are compiled.

Source: Truth and Reconciliation Commission (1998)

4.3.2 Truth through the confession model

"It's not the truth that matters for them: the pure objective is to get out of jail" (Mugesera, cited in Waldorf 2013)

This section argues that while Gacaca's retributive dimension was conducive towards establishing forensic truths, the capacity for such legally established truths to be restorative and reconciliatory was arguably limited. Under the Gacaca plea-bargaining system, the confession model allowed significantly reduced sentences or commutation to community service if the defendant provided a detailed and accurate description of their crime, named any accomplices and apologized in public to any victims as well as to all Rwandans present (Organic Law No. 40/2000 of 2001). Confessions are the cornerstone of both restorative practice through truth commissions as well as retributive

practice through plea bargaining and reduced sentences for confession (Hayner, 2011). One could then assume that Gacaca's confession model would serve both its retributive and restorative aims. However, while the confession model may have served its retributive purpose, its capacity to act as a restorative element of reconciliation was limited.

Desmond Tutu expressed that the main challenge faced by the TRC was perpetrator cooperation (Tutu, 1999). He notes: "one of the greatest weaknesses in the Commission was the fact that we failed to attract the bulk of the white community to participate enthusiastically in the truth and reconciliation process" (Tutu 1999, p.184). As Gacaca law offered legal incentives for providing information, the trials resulted in many thousands of perpetrators detailing how victims were killed and where their bodies could be located which has been considered one of Gacaca's main achievements (Ingelaere, 2008). Indeed, 98% of respondents from the Ngoma commune survey were satisfied or extremely satisfied in regard to Gacaca "letting families know what happened to their loved ones" (Pozen, Neugebauer, and Ntaganira 2014, p.43). Confronting past abuses by letting survivors understand what exactly occurred during past violent conflict is considered essential in the process of healing (Bloomfield, 2003; Freeman and Hayner, 2003). It allows victims to have their suffering publicly acknowledged by both the perpetrators and the wider community and thus restore their humanity (Hayner, 2011).

However, while the confession model did allow for families to receive such information, the capacity for Gacaca's confession model to act as a restorative truth-seeking process has been put into question (Waldorf, 2013). Facts alone are not inherently conducive towards reconciliation, such facts must be accepted, internalized and acknowledged by local communities (Clark, 2010; Hayner, 2011). Although Tiemessen (2004) argues that despite the personal intentions of suspects, "confessions still provide a function of restorative justice that is the discovery of truth over punishment for the purpose of reconciliation" (Tiemessen 2004, p.55), subsequent writings largely contradict this view (PRI, 2010)(Waldorf, 2013)(Longman, 2017). PRI, which has been monitoring Gacaca since its inception, evidenced many half-truths by prisoners seeking to reduce their sentences (PRI, 2010). They evidenced widespread pacts of secrecy whereby prisoners organized themselves prior to Gacaca hearings to provide consistent testimonies which would protect their interests (*ibid*). As this was largely known to local populations, the extent to which this confession model could establish restorative truths is questionable. The largest survivors organization, IBUKA once stated "it's not the truth that matters for them: the pure objective is to get out of jail" (Mugesera, cited in Waldorf 2013). In the previously mentioned Ngoma commune survey, 80% of respondents agreed that the accused confessed in order to reduce their sentences rather than due to sincere remorse (Pozen, Neugebauer, and Ntaganira 2014, p.44). Although confessions in

traditional truth commissions may lead to healing as victims acknowledge the remorse of their perpetrators, legal incentives for confession may have decreased the healing dimension of confessions as testimonies were considered self-serving. Thus the confession model may have been necessary in providing incentives for truth-telling; however, the perceptions by survivors that such truths were often void of sincerity or remorse significantly affected the capacity for truth-telling through confession to contribute to reconciliation (Waldorf, 2013). While the confession model was able to mitigate the often-cited limitation of truth commissions in engaging perpetrators, the extent of the incentives offered limited the capacity for such truths to be perceived as sincere or remorseful. In turn, this seemingly irreconcilable paradox requires further investigation as to the extent to which truths established by state incentive are truly conducive towards reconciliation in post-conflict societies.

4.3.3 Truth through participatory justice

While Gacaca's confession model may have restricted the capacity for truth through confession to contribute to reconciliation, its restorative principle of decentralized and participatory justice was arguably more conducive towards obtaining narrative and dialogue truths than classical criminal trials and potentially traditional truth commissions. It is increasingly acknowledged that classical courtroom trials are limited in their capacity to reach the truths necessary to rebuild post-conflict societies (Hayner, 2011). Indeed, their aim is to determine whether legally required standards of proof while respecting rules of evidence, have been found to convict the defendant of a specific charge (*ibid*). Thus, the narrow focus of classical trials results in witness testimony likely to be restricted to what is considered strictly legally relevant (*ibid*). Gacaca however, sought to uncover legal truths as well as personal and narrative truths (Clark, 2010). As stated in the Gacaca manual aimed to instruct judges as to which truths should be heard, judges were to "facilitate the emergence of the truth of what happened during the genocide and other massacres; to recognize the victims and the nature of the damages inflicted on them" (Clark, citing Gacaca Manual 2010, p.191). In this sense, truth was to be used to establish guilt as well as to determine the 'nature' of the harm inflicted by allowing survivors to recount their personal experiences. One survivor stated that Gacaca was conducive towards uncovering narrative and dialogue truths as "all the survivors come together and talk about what happened" (Clark 2010, p.191). In this regard, Gacaca's restorative dimension provided a forum which allowed survivors to share narrative truths considered essential in rebuilding trust. In regard to traditional truth commissions, scholars have argued that the TRC was lacking in its capacity to promote intergroup contact and communication

of narrative truths among large segments of the local population (Chakravarty, 2013). However, due to Gacaca's decentralized justice, the local population was encouraged and indeed required to participate in weekly sessions in which narrative truths by survivors were continually exchanged and heard. There is insufficient empirical evidence to conclude whether the issues of security described below significantly limited the exchange of narrative truths provided by Gacaca's participatory justice. However, scholars such as Phil Clark consider that despite issues of insecurity, Gacaca's hybrid model was more conducive towards what he deems psychological truths than a purely retributive approach and arguably than a traditional truth commission (Clark, 2010).

Indeed, while Gacaca's emphasis on community dialogue encouraged the exchange and debate of information as to the events of the genocide, its prosecutorial logic limited the capacity for some participants to freely discuss their subjective truths (Waldorf, 2013). During the TRC, an accuser may tarnish another's reputation or social standing but could not be the cause of their incarceration. Indeed, the consequences of truth-telling in the absence of amnesty are significant and may have resulted in severe antagonism and distrust (*ibid*). Ethnographic research suggests that many refused to speak during Gacaca for fear of being accused themselves or facing violent retaliation by friends and family of the accused (*ibid*). In the Ngoma commune survey, 62% agreed with the statement "prosecution witnesses were the victims of retaliation after having given testimony" (Pozen, Neugebauer, and Ntaganira 2014, p.44). As the extent to which participants remained silent due to such security concerns is unknown, one cannot conclude whether Gacaca's hybrid model was systematically conducive towards narrative truths. Notwithstanding somewhat inevitable security concerns, I argue that Gacaca was in many ways more conducive towards the exchange of narrative truths than wholly retributive processes. Most notably, these narrative truths have provided the basis for Gacaca's attempt towards what the TRC deemed restorative truth, the establishment of a public national record. As judges kept records for each case heard, it is estimated that the Gacaca archive includes 63 million pages of trial documents and 8,000 audio visual files which are expected to be digitalized and made public in the coming years (Horsman, 2021). Through the publication of this archive, one will be able to better assess the extent to which Gacaca was able to promote truth. While many question the veracity of testimony during Gacaca hearings (Waldorf, 2013)(Ingelaere, 2009), personal truths or social truths which have been recorded may still be of great value in national rebuilding and reconciliation. Indeed, this public national record may crucially act against the historical revision of disputed events and render *all* personal truths publicly acknowledged (Hayner, 2011; Horsman, 2021)

4.3.4 The Rwandan truth regime

As Foucault stipulated in 1977, truth is never void of power as each society, institution or government promotes a "regime of truth" (Foucault 1977, p.14). Indeed, the Foucauldian notion of truth rejects the scientific lens in which truths are empirical realities and argues instead that truth is pursued within systems of power which define which truths are relevant, dictates the mechanisms used to pursue truth and decides the status of those implicated in revealing the truth (Foucault, 1977). While Gacaca's hybrid structure may have been more conducive towards establishing certain truths than classical criminal trials, Gacaca's truths should not be considered apolitical. While I have demonstrated that the influence of the RPF over trial proceedings and outcomes was arguably limited, the RPF, through its Gacaca law mandated which truths were to be pursued. As the mandate of the Gacaca trials was solely to uncover the truth about genocide related crimes, all alleged war crimes committed by the RPF were to be excluded. In the RPF's violent consolidation of power in the immediate aftermath of the genocide, it is estimated that the military forces of the Rwandan army engaged in widespread revenge killings resulting in the deaths of an estimated 40,000 Hutu men, women and children (Longman, 2017).

The government's refusal to include RPF crimes within Gacaca's mandate has been widely cited by scholars and Rwandan citizens as evidence that truth through Gacaca was partial at best and more generally politically tainted (Longman, 2017; Tiemessen, 2004). While survivors of genocide related crimes committed by Hutu Rwandans were able to receive forensic and narrative truths as to the genocide, the thousands of victims and bystanders of RPF war crimes remain silenced (Waldorf, 2013)(Chakravarty, 2016). In turn, while unrelated to Gacaca's hybridity and its contribution towards truth, Gacaca provided only partial truth and potentially reinforced the perception that Gacaca was characteristic of victor's justice (Ingelaere, 2009; Chakravarty, 2016).

Chapter 5: Conclusion

5.1 Summary

While this dissertation has not aimed to reach definitive conclusions as to whether the Gacaca trials should be considered a successful experiment, I have proposed an interdisciplinary critical literature review elucidating an ongoing debate and offering new insights. My secondary research questions related to whether Gacaca should be considered a hybrid experiment, to Gacaca's internal and external legitimacy and finally to the place of truth during the decade of Gacaca proceedings.

The first section or section 4.1 of this discussion has argued that Gacaca was neither a wholly restorative nor retributive approach in TJ. By adhering to a communitarian principle promoting unrestricted community dialogue, I have argued that Gacaca incorporated restorative features. However, as Gacaca was a punitive mechanism, if it is to be assessed wholly in accordance with restorative paradigms, then Waldorf's characterization of Gacaca as a "failed experiment in restorative justice" is a somewhat inevitable conclusion (Waldorf 2007, p.422). While Gacaca should not be romanticized as a wholly community-led institution, I argue it remains representative of the fourth phase in TJ which encourages community autonomy and context specific TJ. In regard to my research question pertaining to the ways in which Gacaca was able to secure legitimacy, section 4.2, I have considered the disjunction between external and internal standards of legitimacy and argued that certain restorative features likely strengthened local perceptions of legitimacy. Existing literature largely discredits the evidence suggesting that many Rwandan participants have positively assessed the proceedings. I have taken a diverging position and considered the possibility that these survey results are indeed indicative of local perceptions. While RPF authoritarianism is likely to have influenced certain survey results, I have argued in accordance with the view that "positive attitudes (…) cannot be fully discounted" (Pozen, Neugebauer, and Ntaganira 2014, p.34). Thus, by critically assessing the substantive outcomes of Gacaca's endogenous inception, its rule of law compromises and its subsequent procedures, I have aimed to demonstrate the clear discrepancy between international and local perceptions of the Gacaca experience.

The final section of this discussion, section 4.3, considered how the Gacaca hybrid model interacted with the mandated search for truth. I have argued that Gacaca's restorative features relating to locally elected arbitrators, the open discussion of personal, narrative and dialogue truths and the establishment of a public record through the Gacaca archive followed the restorative

justice framework of truth-seeking. However, unlike truth commissions, Gacaca pursued truth through criminal trials which I have argued significantly restricted the restorative and reconciliatory dimensions of truth-seeking. Finally, while I have argued that Gacaca's decentralization of justice was conducive towards certain truths, the RPF's truth regime has resulted in the production of a public archive which acknowledges crimes against the Tutsi minority while excluding the plight of Hutu survivors.

I have considered throughout this discussion the effects of pursuing retributive and restorative justice within a single institution. With regard to the retributive dimension of the Gacaca model, I have argued that while Gacaca's restorative feature of community-led justice damaged the institution's legitimacy in the eyes of the international community, it may have strengthened the capacity for local populations to consider the model justified and legitimate in the pursuit of punitive justice. In regard to the impact of prosecution on restorative outcomes I have considered the specific substantive outcomes of truth-seeking and argued that Gacaca's punitive dimension likely restricted the capacity for truth to be conducive towards reconciliation due to crises of mistrust and the heightened social cost of testifying.

5.2 Limitations and further research

As this dissertation relates primarily to the theoretical frameworks of retributive and restorative justice, I have not addressed many cases of severe miscarriages of justice during the decade of proceedings. It is thus essential that this research be complemented by engaging with publications by PRI for instance, as a detailed account of the human rights toll of these trials was beyond the scope of this dissertation. Further, this dissertation has unfortunately contributed to the academic tendency to rely heavily on theoretical and structural arguments as opposed to ethnographic research. In order to reach any definitive conclusions as to the implications of the trials, ethno-narratives by relevant actors are invaluable. As previously noted, I relied heavily on a single 2014 ethnographic study as I considered their sampling methods and statistical analyses successful in providing reliable data. If one is to reach a diverging conclusion as to the explanatory power of these results, the analysis offered throughout this discussion may be put into question.

Further, as this dissertation was narrow in scope, it was not possible to examine many other characteristics of the trials. Consequently, further investigation as to the interactions between hybrid justice and democracy, deterrence, traumatization and the various components of inter-ethnic reconciliation and equality, among other subjects, will be crucial in complementing my

investigation as to the legacy of this hybrid model. Finally, as my research has demonstrated that there exists a disjunction between international (as seen by analyses by Amnesty International for instance) and local perceptions of legitimacy, I believe future assessments of these trials as well as future TJ initiatives, would benefit from considering such discrepancies in order to provide context specific policy recommendations.

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